

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JONATHAN FRANCES and VINCENT TOLEDO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
STANISLAV KUSHNIR (Shield # 2358) and JOHN and JANE
DOE #'s 1-8 (names and numbers are unknown at
present) and Other Unidentified members of the New
York City Police Department,

Defendants.
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SUMMONS

Index #

Basis of Venue:
Place of Incident

Plaintiff Designates
Kings County
as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 30, 2020

Respectfully submitted,

/s/ Sydney Ohagan
Sydney O'Hagan, Esq.
40 Exchange Place
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD DETECTIVE STANISLAV KUSHNIR (Shield # 2358), 740 Command, 72nd Precinct, New
York, NY

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JONATHAN FRANCES and VINCENT TOLEDO,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
STANISLAV KUSHNIR (Shield # 2358) and JOHN and
JANE DOE #'s 1-8 (names and numbers are unknown at
present) and Other Unidentified members of the New York
City Police Department,

Defendants.

-----X

Plaintiff **Jonathan Frances and Vincent Toledo**, by their attorney, SYDNEY O'HAGAN, ESQ., as and for the
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiffs were unlawfully arrested by the defendants. Plaintiffs were deprived of their federal constitutional and state constitutional and common law rights when the individually named police officer defendants subjected them to, among other things, false arrest, unlawful search and seizure, federal and state law malicious prosecution, denial of medical treatment, conspiracy, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. In addition, plaintiffs were subjected to conversion of chattels. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Jonathan Frances and Vincent Toledo are residents of the State of New York, Kings County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD DETECTIVE STANISLAV KUSHNIR, assigned Shield # 2358, employed with the 740 Command, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

5. NYPD DETECTIVE STANISLAV KUSHNIR (Shield # 2358) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-8 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

12. On September 5, 2019 at approximately 6:25 a.m. at 219 65th Street, Apartment IF, Brooklyn, New York, several police officers from the 740 Command, 72nd Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Detective Stanislav Kushnir, P.O. John and Jane Does #1-8, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiffs Frances and Toledo.
13. On September 5, 2019, at approximately 9:30 p.m., Plaintiffs were sleeping in their apartment when, without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime, the defendants unlawfully entered the apartment by breaking through the door and drew their firearms at plaintiffs.

14. The defendants purported to have a search warrant for the apartment, however no such search warrant was provided to plaintiff s even though Plaintiffs made several requests to view the alleged warrant.
15. Once the defendant officers entered the apartment, plaintiffs were not free to disregard their questions, or walk away, or leave the scene.
16. While inside the apartment, defendants, without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion to believe that the plaintiffs (or any third person) had committed a crime, falsely arrest the plaintiffs.
17. Upon information and belief, plaintiffs were not the subjects of any search warrant.
18. The defendants then searched the entire apartment. In order to conduct their illegal search, the defendants broke down a locked interior door that was in the exclusive possession of the plaintiffs. Defendants also broke plaintiff's toilet, shelving unit, and destroyed clothing within the apartment.
19. Defendants seized a vehicle parked in plaintiff's driveway. The vehicle, a Mercedes, was in pristine condition. Plaintiff's drove the vehicle at 80 miles per hour to an impound lot and damaged a side panel to the car. Defendants did not have any objective and/or reasonable basis to seize the vehicle. No contraband or illegal substances were ever found anywhere near or inside the vehicle and defendants had received no reliable information that such evidence would be found in the vehicle. Plaintiffs incurred substantial costs to retrieve the car from the lot and to pay for the damage incurred by defendants.
20. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiffs or their property because plaintiffs were unarmed, compliant, and did not resist arrest.
21. Plaintiffs were transported to the 72nd precinct and then transferred to New York Central Booking.
22. Plaintiff Toledo was physically injured as a result of his confinement. At the time of his arrest, Plaintiff Toledo was taking daily medication for blood pressure and back pain. Despite his repeated requests for access to prescription medication or medical intervention at both the precinct and central booking, his requests were ignored or denied and he received no medical care while in custody. Moreover, he was forced to lie on the hard ground while in custody, exacerbating his back condition.
23. While plaintiffs were incarcerated at the 72nd precinct and Central Booking, defendants falsely and maliciously told the New York County District Attorney's Office that plaintiff had committed the crime of a possession of a weapon in the fourth degree. Plaintiff Frances was also charged with possession of an imitation weapon. Defendants knew these allegations to be false based on information provided at the time of plaintiffs' arrest and the type and quality of objects seized by defendants. These alleged "weapons" were no more than collector's knives, manufactured to replicate knives or weapons from famous television or movie projects. Most were inscribed with

a particular show's motto or name, and clearly were mean to resemble fantasy-world toys, rather than illegal weapons.

24. Based on the defendant's false statements, the New York County District Attorney's office chose to prosecute Plaintiff Frances under docket CR-032932-19KN and Plaintiff Toledo under CR-032927-19KN.
25. Plaintiff was incarcerated for approximately 40.5. hours. During their confinement, plaintiffs were subject to depraved, filthy and inhumane conditions.
26. Plaintiffs were released on their own recognizance at arraignment.
27. On January 8, 2020, the above-stated malicious prosecution terminated in plaintiffs' favor when the case against them was dismissed and sealed in its entirety.
28. Prior to dismissal, plaintiff attended 5 court appearances.
29. Plaintiffs were evicted from their apartment because of the damage defendants caused and lost their \$1,000 security deposit. Plaintiffs paid to retain a private attorney to represent them. Defendants seized \$708 from Plaintiff Toledo and vouchered it under a false name, so he was unable to retrieve the money. Plaintiff Toledo had to pay substantial fees to retrieve the vehicle the defendants unlawfully seized from his driveway and paid additionally for the cost of the repairs to the vehicle.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

30. Plaintiff repeats and alleges paragraphs 1 through 29 as if fully set forth herein.
31. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
32. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
33. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

MALICIOUS PROSECUTION

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.
35. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
36. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
37. Defendants commenced and continued a criminal proceeding against plaintiff.
38. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which they were prosecuted.
39. The prosecution and criminal proceedings terminated favorably to plaintiffs on January 8, 2020.
40. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate their state constitutional and tort rights.
41. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
43. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.
45. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.

46. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
47. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
48. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
49. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.
51. Defendants owed a duty of care to plaintiff.
52. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
53. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
54. All of the foregoing occurred without any fault by plaintiff.
55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.
57. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and

damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

- 58. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
- 59. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH CAUSE OF ACTION

CRUEL AND UNUSUAL PUNISHMENT

- 60. The plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.
- 61. By actions described herein, the individually named police officer defendants and correction officers, each acting individually and in concert with one another, intentionally disregarded plaintiff's medical needs. Defendants refused to provide any medical treatment to the plaintiff, despite his repeated requests they do so. This failure to provide treatment inflicted unnecessary and wanton pain upon plaintiff. As a result, plaintiff suffered severe pain and prolonged physical harm.
- 62. As a result of the foregoing, plaintiff was subjected to cruel and unusual punishment.
- 63. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH, NINTH, TENTH, ELEVENTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Fifth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (8th claim); false-arrest/cruel and unusual punishment/unlawful-search claims (9th claim); malicious-prosecution claim (10th claim) and deprivation-of-fair-trial claim (11th claim).

- 64. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.
- 65. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
- 66. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.

67. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights.
68. In particular, Plaintiffs allege that Defendants' retaliatory and harassing false arrest, use of cruel and unusual punishment, unlawful search, malicious prosecution and fabrication of evidence violated their First, Fourth, Fifth, and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.
69. Insofar as Plaintiffs' federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiffs repeat and reiterates the above allegations in support of the federal claims here.
70. In the event Plaintiff prevails at trial on one, some or all of their 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

TWELFTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.
72. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
73. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
74. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
75. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have

been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.

76. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
77. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested, subjected to undue force and unlawful search, and prosecuted.
78. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, JONATHAN FRANCES and VINCENT TOLEDO, plaintiffs, demand a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
November 30, 2020

Respectfully submitted:

By: /s/ Sydney Ohagan
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40 Exchange Place
Suite 1000
New York, New York 10005
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NYPD DETECTIVE STANISLAV KUSHNIR (Shield # 2358), 740 Command, 72nd Precinct, New York, NY

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
November 30, 2020

Sydney O'hagan /s/
Sydney O'Hagan, Esq.